

COMMITTEE ON EDUCATION
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1684
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 15-120.08, to read:

4 15-120.08. School liability; bullying; serious physical
5 injury; court action; definitions

6 A. A STUDENT OR A STUDENT'S PARENT MAY BRING A CAUSE OF ACTION
7 AGAINST A PUBLIC SCHOOL FOR DAMAGES CAUSED BY THE SCHOOL'S FAILURE TO
8 ADDRESS A THREAT TO THE STUDENT'S SAFETY IF ALL OF THE FOLLOWING APPLY:

9 1. THE STUDENT SUFFERS SERIOUS PHYSICAL INJURY AS A RESULT OF
10 [~~BULLYING BY~~] ANOTHER STUDENT [~~BULLYING THE INJURED STUDENT ON SCHOOL~~
11 PROPERTY OR AT A SCHOOL-SPONSORED EVENT OR ACTIVITY].

12 2. THE SCHOOL OR AN EMPLOYEE OF THE SCHOOL, INCLUDING AN INDIVIDUAL
13 WHO IS INDIRECTLY EMPLOYED THROUGH A THIRD-PARTY CONTRACTOR, RECEIVES AT
14 LEAST ONE PRIOR REPORT THAT THE OTHER STUDENT COMMITTED AN ACT OF BULLYING
15 AGAINST THE INJURED STUDENT [ON SCHOOL PROPERTY OR AT A SCHOOL-SPONSORED
16 EVENT OR ACTIVITY].

17 3. THE SCHOOL NEGLIGENTLY FAILED TO ADDRESS THE SUSPECTED ACT OF
18 BULLYING COMMITTED BY THE OTHER STUDENT AND AGAINST THE INJURED STUDENT
19 AFTER RECEIVING A PRIOR REPORT.

20 B. THE COURT MAY AWARD REASONABLE ATTORNEY FEES, EXPENSES AND
21 DAMAGES TO ANY CLAIMANT WHO SUBSTANTIALLY PREVAILS IN AN ACTION BROUGHT
22 PURSUANT TO THIS SECTION.

23 C. FOR THE PURPOSES OF THIS SECTION[.] [7.]

24 [1.] "PRIOR REPORT" INCLUDES:

25 [~~1.~~] [(a)] A WRITTEN [~~OR VERBAL~~] REPORT THAT ANY INDIVIDUAL MAKES
26 TO AN EMPLOYEE OF THE SCHOOL.

27 [~~2.~~] [(b)] A SCHOOL EMPLOYEE'S PERSONAL OBSERVATION OF CONDUCT
28 THAT THE EMPLOYEE REASONABLY BELIEVES CONSTITUTES AN ACT OF BULLYING.

1 [2. "SERIOUS PHYSICAL INJURY" HAS THE SAME MEANING PRESCRIBED IN
2 SECTION 13-105.]

3 Enroll and engross to conform

4 Amend title to conform

And, as so amended, it do pass

MATT GRESS
CHAIRMAN

1684EDUCATION.docx

03/24/2026

04:51 PM

C: VS

130EFSSUI